

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #12	CCRB Case #: 201600061	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 01/02/2016 11:00 AM	Location of Incident: § 87(2)(b); 17th Precinct Stationhouse	18 Mo. SOL 7/2/2017	Precinct: 17
Date/Time CV Reported Tue, 01/05/2016 1:28 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/05/2016 1:28 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT2 Darryl Ng	05825	934819	017 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Caroline Montes	08418	957867	017 PCT
2. SGT Daniel Freifeld	03777	931507	017 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT2 Darryl Ng	Abuse: Inside § 87(2)(b), in Manhattan, Detective Darryl Ng threatened to arrest § 87(2)(b)	A . Exonerated
B . DT2 Darryl Ng	Discourtesy: At the 17th Precinct stationhouse, Detective Darryl Ng acted discourteously toward § 87(2)(b)	B . Unsubstantiated
C . DT2 Darryl Ng	Abuse: At the 17th Precinct stationhouse, Detective Darryl Ng threatened to arrest § 87(2)(b)	C . Exonerated

Case Summary

On January 5, 2016, § 87(2)(b) filed this complaint with the CCRB via telephone.

On January 2, 2016, Detective Darryl Ng went to § 87(2)(b)'s apartment, located at § 87(2)(b) in Manhattan (hereafter referred to as § 87(2)(b)), to investigate chronic false calls to 911. Det. Ng threatened to arrest § 87(2)(b) inside of § 87(2)(b) (**Allegation A**). Shortly after Det. Ng left § 87(2)(b), § 87(2)(b) went to the 17th Precinct stationhouse to file a complaint against Det. Ng. Det. Ng allegedly approached § 87(2)(b) and stood in between her uncrossed legs (**Allegation B**), and threatened to arrest § 87(2)(b) again (**Allegation C**).

No arrests or summonses resulted from this incident.

There is no video footage regarding this incident.

On February 2, 2016, this case was reassigned to Investigator Tessa Yesselman from Investigator Tiffany Dempsey following Inv. Dempsey's departure from the agency.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of April 1, 2016, § 87(2)(b) has not filed a Notice of Claim with the New York City Officer of the Comptroller.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint § 87(2)(b) has been party to (**08 Board Review**).
- Det. Ng has been a Member of Service for eleven years, and has one previous allegation against him with no substantiations § 87(2)(g)
- Sgt. Freifeld has been a member of the NYPD for thirteen years, and has six previous allegations against him with no substantiations § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(b) went to the 17th Precinct stationhouse to file a complaint against Det. Ng and she ultimately left the stationhouse with the number to the CCRB and Det. Ng's name. § 87(2)(b) was not complaining that the officers did not take her complaint at the stationhouse and she was satisfied with receiving the number to the CCRB. § 87(2)(b) was solely concerned with Det. Ng's conduct at her home and at the stationhouse.

§ 87(2)(b) stated that when she went to the stationhouse, PO Montes asked her if she wanted to file a complaint against Det. Ng, and § 87(2)(b) replied that she did. PO Montes was collecting information from § 87(2)(b) about the incident, when Det. Ng entered the stationhouse. § 87(2)(b) stated that she and Det. Ng began yelling at each other (**07 Board Review**), and PO Montes described the interaction between Det. Ng and § 87(2)(b) as a "huge argument" (**04 Board Review**). Det. Ng stated that Sgt. Freifeld

asked § 87(2)(b) to step outside so that he could talk to Det. Ng independently. After Sgt. Freifeld spoke with Det. Ng, Det. Ng went upstairs, and § 87(2)(b) re-entered the stationhouse **(06 Board Review)**. § 87(2)(b) reiterated her request to PO Montes that she wanted to file a complaint against Det. Ng, and Sgt. Freifeld stated that she was free to do so **(07 Board Review)**.

Allegation A – Abuse of Authority: Inside § 87(2)(b), in Manhattan, Det. Darryl Ng threatened to arrest § 87(2)(b)

Allegation C – Abuse of Authority: At the 17th Precinct stationhouse, Det. Darryl Ng threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that Det. Ng came to her apartment, began questioning her about narcotic use in her apartment building, and said that if she called 911 again, he would have her arrested. § 87(2)(b) asked Det. Ng why he would have her arrested, and Det. Ng did not provide an explanation. § 87(2)(b) stated that she has only called 911 two times since March of 2015. § 87(2)(b) stated that when she went to the 17th Precinct stationhouse, Det. Ng threatened to arrest her again. § 87(2)(b) could not recall whether Det. Ng gave her a reason why she would be arrested (07 Board Review).

him, and never wanted to speak to him again. Det. Ng explained to § 87(2)(b) again why he had come to § 87(2)(b) and stated that if the calls continued, she could be placed under arrest (**06 Board Review**).

PO Montes, who was the telephone switchboard operator on this day, observed § 87(2)(b) and Det. Ng speaking to each other, but did not hear Det. Ng threaten to arrest § 87(2)(b) (**04 Board Review**).

§ 87(2)(g)
§ 87(2)(b). Therefore it is recommended that **Allegation A** and **Allegation C** be closed as **exonerated**.

Allegation B – Discourtesy: At the 17th Precinct stationhouse, Det. Darryl Ng acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that while speaking with PO Montes, Det. Ng entered the stationhouse and approached her, and stood in between her uncrossed legs. Det. Ng leaned over § 87(2)(b) with his leg making contact with her knee. § 87(2)(b) asked Det. Ng to step away from her. § 87(2)(b) § 87(2)(b) lifted her legs over the chair, and squeezed her body past Det. Ng to get away from him (**07 Board Review**).

Det. Ng did not make any physical contact with § 87(2)(b). There was enough room between Det. Ng and § 87(2)(b) for § 87(2)(b) to stand up and move freely (**06 Board Review**).

Neither PO Montes (**04 Board Review**) nor Sgt. Freifeld (**05 Board Review**) saw Det. Ng stand between § 87(2)(b)'s uncrossed legs, or make any other type of physical contact with § 87(2)(b) § 87(2)(b).

§ 87(2)(g)
§ 87(2)(b)

Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date